

Court No. - 36

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar Pathak, Surendra Kumar
Chaubey

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Learned Counsel for respondent no.3 prays for and is permitted to seek instructions as to whether the respondent no.3 namely The Chief Executive Engineer, Aligarh Division Electricity Distribution Division I, Lal Diggi, Aligarh in Original Suit No.583 of 2014 has filed any objection to the Amin report dated 19.7.2014.

Learned Counsel for the petitioner shall also complete instructions and bring before the Court the fact as to whether the Amin report was objected by any of the defendant before the Court below.

As prayed, put up this matter on 21.7.2017 in the additional cause list.

Till the next date of listing, the respondent no.3 is restrained from laying down high tension line on the plot in question.

Order Date :- 12.7.2017

Savita

Court No. - 36

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Put up this matter on 17.8.2017 in the additional cause list.

Order Date :- 3.8.2017

B.K./-

Court No. - 36

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Put up this matter on 23.8.2017 in the additional cause list.

Interim order granted earlier shall continue till the next date of listing.

Order Date :- 17.8.2017

Savita

Court No. - 36

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Put up on 6.9.2017 in the additional cause list.

Interim order granted earlier shall continue till the next date of listing.

Order Date :- 23.8.2017

B.K./-

Court No. - 36

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar Pathak, Surendra Kumar
Chaubey

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Supplementary affidavit filed today is taken on record.

Issue notice to respondent nos. 1 and 2 returnable at an early date.

Steps be taken within one week by both way i.e. ordinary process as well as registered post A.D.

All the respondents may file counter affidavit within three weeks.

One week, thereafter, is granted for filing rejoinder affidavit.

List on 6th October, 2017.

Till the next date of listing, the interim order granted on 12.7.2017 shall remain in operation.

Order Date :- 6.9.2017

B.K./-

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar

Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar

Chaturvedi, Kuldeep Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

As a last opportunity two weeks and no more time is accorded to the petitioner to file Rejoinder Affidavit.

List this matter in the week commencing 23.7.2018. Interim order, if any, is extended till the next date of listing.

Order Date :- 6.7.2018

A. Pandey

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar Chaturvedi, Kuldeep Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

List this matter in the next cause list.

The interim order will continue to operate till the next date of listing.

Order Date :- 23.7.2018

RKP

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar
Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar
Chaturvedi, Kuldeep Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

List after four weeks.

Interim order is extended till the next date of listing.

Order Date :- 30.7.2018

A.K.Srivastava

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar Pathak, Surendra Kumar
Chaubey

Counsel for Respondent :- Baleshwar Chaturvedi, Kuldeep
Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

Put up tomorrow in additional cause list.

Order Date :- 6.8.2018

RKP

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar
Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar
Chaturvedi, Kuldeep Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

Correction application is allowed.

List this matter in the next cause list.

Interim order is extended till the next date of listing.

Order Date :- 7.8.2018

A.K.Srivastava

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar

Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar

Chaturvedi, Kuldeep Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

Sri Bharat Pratap Singh, learned counsel for the respondent has vehemently opposed the stay extension application.

List this matter as peremptorily in the next cause list.

Interim order is extended till the next date of listing.

Order Date :- 14.8.2018

A.K.Srivastava

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar Chaturvedi, Kuldeep Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

List on 30.08.2018 as peremptorily. The interim order, if any, stands extended till the next date of listing.

Order Date :- 21.8.2018

SP/

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar
Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar
Chaturvedi, Kuldeep Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

List in the next cause list.

Interim order, if any, is extended till the next date of listing.

Order Date :- 30.8.2018

A.K.Srivastava

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar

Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar

Chaturvedi, Kuldeep Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

On the request of learned counsel for the petitioner, put up this matter on 12.09.2018. Interim order, if any, is extended till the next date of listing.

Order Date :- 7.9.2018

A. Pandey

Court No. - 18

Case :- MATTERS UNDER ARTICLE 227 No. - 4140 of 2017

Petitioner :- Sri Sonpal Singh

Respondent :- Sri Birpal Sharma And 2 Others

Counsel for Petitioner :- Ajay Kumar Pathak, Surendra Kumar Chaubey

Counsel for Respondent :- Baleshwar Chaturvedi, Kuldeep Singh Tomar

Hon'ble Mahesh Chandra Tripathi, J.

Heard Shri S.K. Chaubey, learned counsel for the plaintiff-petitioner; Shri Baleshwar Chaturvedi for the third respondent and Shri Bharat Pratap Singh for the private respondents.

The plaintiff-petitioner is before this Court assailing the order dated 8.8.2016 passed by Civil Judge (SD), Aligarh in Original Suit No.583 of 2014 (Sonpal Singh v .Birpal Sharma & Ors.) by which the injunction application has been turned down, and the same has been affirmed vide order dated 21.5.2017 passed by District Judge, Aligarh in Misc. Civil Appeal No.80 of 2016 (Sonpal Singh v. Birpal Sharma & Ors.), which is also under challenge in this writ petition.

On the matter being taken up on 12.7.2017, while entertaining the writ petition, the Court has passed interim order restraining respondent no.3 from laying down high tension line on the plot in question till the next date of listing.

Shri Bharat Pratap Singh, learned counsel for the private respondents as well as Shri Baleshwar Chaturvedi appearing for third respondent raised preliminary objection that so far as suit for injunction is concerned, the same is not maintainable in view of the decision taken by the Division Bench of this Court in Writ Petition No.33094 of 2016, wherein reliance has been placed on Deva Raj v. U.P. State Electricity Board, Lucknow & Ors., AIR 1977 Allahabad 452 in which the Division Bench of this Court had examined the provisions of Section 51 of the Indian Electricity Act, 1910, which is similar to the provisions of Section 164 of the Electricity Act, 2003 and observed that in view of the notification issued by the State Government under Section 51 of 1910 Act read with Section 10 of the Telegraphs Act, the respondents have the power to install the towers on the land owned by a person. Similar view has also been taken by the Madras High Court in E. Venkatesan & Ors. v. Chairman, Tamil Nadu Electricity Board, Madras & Ors., AIR 1977 Madras 64. The Court has also relied upon Pooran Singh & Ors. v. State of U.P. & Ors., Writ-C No.29995 of 2016, wherein it is observed that the construction of transmission power service lines cannot be stopped for want of payment of compensation.

However, an appropriate direction can be issued to the competent authority for determining the compensation in accordance with law and pay the same to the tenure holders over whose land the towers are being erected.

Shri Bharat Pratap Singh, learned counsel who represents the contesting respondents has further make submissions that so far as injunction is concerned, the same has adequately been considered by the trial court on the basis of prima facie case, balance of convenience and irreparable loss and the trial court was of the opinion that in case the power line is to go on the holding of the plaintiff-petitioner, he would not suffer any irreparable loss and injury. The said view is also reiterated by the appellate court. It is contended that the defendant-respondents had also deposited amount of Rs.1,25,000/- towards installation of the pole and for supply of power on 12.3.2014 and as such they have every right as per the Electricity Act and the Electricity Supply code, 2005 to ask for installation of power poll as well as for smooth supply of the electricity.

Confronted with this, learned counsel for the petitioner submits that once electricity pole is already installed in the holding of the defendant, there is every feasibility for getting the connection from the said pole and as such there is no reason or occasion to lay down power supply from the holding of the petitioner and as such he would suffer irreparable loss and injury.

The Court has proceeded to examine the record in question and does not find any infirmity or illegality in the orders impugned so as to make interference under Art.227 of the Constitution of India.

Shri Baleshwar Chaturvedi, who appears for third respondent also apprises to the Court that so far as relief as has been asked for can very well be looked into, examined and remedied by the Collector/ District Magistrate under Rule 3 (b) of Works of Licensees Rules, 2006 and as such no relief can be extended under Art.227 of the Constitution of India.

Once the Court has declined to interfere in the matter, relying on the argument so advanced by Shri Baleshwar Chaturvedi regarding the remedy as has been provided in the Works of Licensees Rules, 2006, learned counsel for the petitioner submits that appropriate application would be moved within ten days before the trial court for not pressing the suit itself and would approach to the District Magistrate as per Works of Licensees Rules, 2006 for adequate relief.

Considering the facts and circumstances of the case, it is provided that the petitioner would be at liberty to move appropriate application before the trial court as well as to the District Magistrate and the same would be considered by the authorities concerned in accordance with law expeditiously.

The writ petition stands **disposed of** accordingly.

Order Date :- 12.9.2018
SP/